

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

MATTHEW VEGA,

Plaintiff,

-against-

THE CITY OF NEW YORK, EDUARDO L.
HIRALDO, SAFET S. KACAJ, TANSIM RAFID,
and NADIR M. ABDELHAKIMALI

Defendants.

Index No.:

Plaintiff Demands a Trial by Jury

SUMMONS

The basis of venue is location of
occurrence.

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
February 18, 2024

RHEINGOLD GIUFFRA RUFFO
& PLOTKIN LLP
Attorneys for Plaintiff



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SUPREME COURT OF THE STATE OF NEW YORK
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MATTHEW VEGA,

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THE CITY OF NEW YORK, EDUARDO L.
HIRALDO, SAFET S. KACAJ, TANSIM RAFID,
and NADIR M. ABDELHAKIMALI

Defendants.

Index No.:

VERIFIED COMPLAINT

Plaintiff, MATTHEW VEGA by his attorneys, RHEINGOLD GIUFFRA RUFFO & PLOTKIN LLP, complaining of the Defendants, respectfully allege, upon information and belief, the following:

PARTIES

1. Plaintiff MATTHEW VEGA (hereinafter "VEGA") is a citizen of the United States, and at all relevant times a resident of the City and State of New York.

2. Defendant CITY OF NEW YORK (hereinafter "CITY") was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. Defendant Police Officer EDUARDO L. HIRALDO (hereinafter "HIRALDO") of the 33rd Precinct was and still is an employee of Defendant CITY and is sued in his individual and official capacities.

4. That at all times hereinafter mentioned, HIRALDO was an agent, servant and/or employee of Defendant CITY.

5. That at all times herein mentioned, HIRALDO was a police officer in the employ of Defendant CITY.

6. Defendant Police Officer HIRALDO, of the 33rd Precinct was and still is an employee of the New York City Police Department (hereinafter, "NYPD") and is sued in his individual and official capacities.

7. That at all times hereinafter mentioned, Defendant Police Officer HIRALDO was agent, servant and/or employee of NYPD.

8. That at all times herein mentioned, HIRALDO was a police officer in the employ of NYPD.

9. Defendant Police Officer HIRALDO's badge number is #12872.

10. Defendant Police Officer SAFET S. KACAJ (hereinafter "KACAJ") of the 33rd Precinct was and still is an employee of Defendant CITY and is sued in his individual and official capacities. That at all times hereinafter mentioned, Defendant police officer KACAJ was agent, servant and/or employee of Defendant CITY.

11. That at all times hereinafter mentioned, KACAJ was an agent, servant and/or employee of Defendant CITY.

12. That at all times herein mentioned, Defendant KACAJ was a police officer in the employ of Defendant CITY.

13. Defendant Police Officer KACAJ, of the 33rd Precinct was and still is an employee of the NYPD and is sued in his individual and official capacities.

14. That at all times hereinafter mentioned, Defendant Police Officer KACAJ was an agent, servant and/or employee of NYPD.

15. That at all times herein mentioned, Defendant KACAJ was a police officer in the employ of NYPD.

16. Defendant Police Officer KACAJ's badge number is #19968.

17. Defendant Police Officer TANSIM RAFID (hereinafter "RAFID") of the 33rd Precinct was and still is an employee of the City of New York and is sued in his individual and official capacities.

18. That at all times hereinafter mentioned, RAFID was an agent, servant and/or employee of Defendant CITY.

19. That at all times herein mentioned, Defendant RAFID was a police officer in the employ of Defendant CITY.

20. Defendant Police Officer RAFID, of the 33rd Precinct was and still is an employee of the NYPD and is sued in his individual and official capacities.

21. That at all times hereinafter mentioned, Defendant Police Officer RAFID was an agent, servant and/or employee of NYPD.

22. That at all times herein mentioned, Defendant RAFID was a police officer in the employ of NYPD.

23. Defendant Police Officer RAFID's badge number is #2471.

24. Defendant Police Officer NADIR M. ABDELHAKIMALI (hereinafter "ABDELHAKIMALI"), who at the time of the incident was a member of the 33rd Precinct, was and still is an employee of the City of New York and is sued in his individual and official capacities.

25. That at all times hereinafter mentioned, ABDELHAKIMAL was an agent, servant and/or employee of Defendant CITY

26. That at all times herein mentioned, Defendant ABDELHAKIMAL was a police officer in the employ of Defendant CITY.

27. Defendant Police Officer ABDELHAKIMAL, of the 33rd Precinct was and still is an employee of the NYPD and is sued in his individual and official capacities.

28. That at all times hereinafter mentioned, Defendant Police Officer ABDELHAKIMAL was agent, servant and/or employee of NYPD.

29. That at all times herein mentioned, Defendant ABDELHAKIMALI was a police officer in the employ of NYPD.

30. Defendant Police Officer ABDELHAKIMALI's badge number is #4900.

31. Plaintiff has duly complied with conditions precedents to this lawsuit by duly, properly, and timely filing a notice of claim within ninety (90) days of the occurrence of the events giving rise to this lawsuit.

32. On May 17, 2023, plaintiff received acknowledgement that the notice of claim was properly filed from The City of New York Office of the Comptroller and assigned Comptroller Claim No. 2023PI016054.

33. An amended notice of claim was served on or about September 6, 2023.

34. A 50-H hearing took place on October 24th, 2023, pertaining to the matter set forth in this complaint.

35. That although more than 30 days have elapsed since the service and presentation of said Notices of Claims and Demands for Adjustment as aforesaid, Defendants have failed and/or refused to make any adjustment or payment of said claims.

36. That this action is commenced within one year and ninety days of the accrual of plaintiff's claims herein.

FACTS

37. On February 18, 2023, at approximately 10:18pm the Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, arrived to 4142 Broadway New York, NY 10033.

38. At the aforesaid time and place, VEGA was, without just cause, wrongfully assaulted by Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, of the New York City Police Department.

39. Defendant CITY and The New York City Police Department failed to prevent this assault, although it could have done so in the exercise of reasonable care.

40. VEGA was never charged with resisting arrest.

41. Defendant Police Officer HIRALDO called VEGA a “Bitch Ass N*gga”, and Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, proceeded to slam VEGA to the floor.

42. The slam caused a gash on VEGA’s forehead, shoulder pain, and pain in his left leg.

43. VEGA was then detained on the ground, and while in this position, he made numerous requests to Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, to be stood up due to the pain in his left leg, which Defendants denied VEGA’s requests to be stood up.

44. As a result of the foregoing occurrence, VEGA sustained, among other injuries, a torn rotator cuff, a glenoid fracture of shoulder, a hematoma, and other physical and mental trauma causing immense significant pain and suffering.

45. At all times herein, the individual Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, were acting within the apparent scope of their employment of Defendant CITY with the knowledge and consent of their superiors.

46. The assault on VEGA by the individual Defendants Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, were far in excess of their rightful authority as Defendant CITY employees and NEW YORK CITY POLICE OFFICERS.

47. That at all times relevant hereto, the individual Defendants, CITY and Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, acted willfully and wantonly and with deliberate indifference to the rights, wellbeing, and feelings of VEGA.

48. That at all times relevant hereto, the individual Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, acted in accordance with an established policy, practice, custom, and/or procedure of Defendant CITY, which violated VEGA's known rights.

49. That on the above referenced date and time, Defendants', Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, assault on VEGA was made without proper or probable cause.

50. That on the above referenced date and time, Defendants', Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, assault on VEGA was under the scope of the employment of Defendant CITY.

51. That at all times relevant hereto, the Defendants', CITY and Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, conduct violated clearly established rights of VEGA, which a reasonable police officer knew or should have known.

52. As a direct result of the foregoing, Plaintiff sustained physical, emotional, and psychological injuries, along with pain and suffering and loss of enjoyment of life.

53. That the amount of damages sought herein exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

54. That this action falls within one or more of the exceptions set forth in CPLR §1601, as with due diligence, Plaintiff is unable to obtain jurisdiction over any such person that may have any fault in this matter aside from Defendants herein, and in that Defendants were vicariously responsible for any possible additional parties with liability herein.

55. That this action falls within one or more of the exceptions set forth in CPLR §1602, specifically: (5) (due to Defendants' intentional conduct), (7) (as Defendants acted with reckless disregard), (11) (as Defendants acted knowingly or intentionally, and in concert).

AS FOR A FIRST CAUSE OF ACTION
(Excessive force)

56. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1 " through "55" with the same force and effect as if fully set forth herein.

57. The Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, used force to arrest VEGA, and the force used was unreasonable and excessive and caused unnecessary injuries to VEGA.

58. That Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, failed to use the amount of force a reasonable and prudent police officer would use in making the arrest under the same facts and circumstances.

59. That the amount of force used by Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, in the arrest of VEGA was unreasonable given the surrounding circumstances.

60. In that VEGA did not pose a significant threat of death or serious physical injury to the arresting officers or others.

61. That Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, used force to arrest VEGA and the force used was unreasonable and excessive and caused unnecessary injuries to VEGA.

62. Specifically, that as a result of the excessive force used by Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, VEGA sustained a torn rotator cuff, a glenoid fracture of shoulder, and a hematoma, abrasions of face, along with other injuries, which all caused pain and suffering.

63. That the excessive force was attributable to Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, while said parties were acting under color of state law as police officers of the New York City Police Department under the employ of Defendant CITY.

64. Defendant CITY is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

65. Specifically, Defendant CITY is liable for all of the conduct mentioned in this complaint that Defendant Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI committed due to the fact such conduct was committed while that Defendant Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI were acting in the scope and in furtherance of their employment with Defendant CITY.

66. As a direct result of the foregoing, Plaintiff sustained physical, emotional, and psychological injuries, along with pain and suffering and loss of enjoyment of life.

67. That the amount of damages sought herein exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

68. That this action falls within one or more of the exceptions set forth in CPLR §1601, as with due diligence, Plaintiff is unable to obtain jurisdiction over any such person that may have any fault in this matter aside from Defendants herein, and in that Defendants were vicariously responsible for any possible additional parties with liability herein.

69. That this action falls within one or more of the exceptions set forth in CPLR §1602, specifically: (5) (due to Defendants' intentional conduct), (7) (as Defendants acted with reckless disregard), (11) (as Defendants acted knowingly or intentionally, and in concert).

AS AND FOR A SECOND CAUSE OF ACTION
(Assault and Battery)

70. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "69" with the same force and effect as if fully set forth herein.

71. As a result of the foregoing, VEGA was placed in imminent harmful and offensive bodily contact.

72. Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, made offensive contact with VEGA without privilege or VEGA's consent.

73. Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, made offensive contact with VEGA without privilege or VEGA's consent while Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, were acting under color of state law as police officers of the New York City Police Department under the employ of Defendant CITY.

74. As a result of the foregoing occurrence, VEGA sustained, a torn rotator cuff, a glenoid fracture of shoulder, a hematoma, a significant of trauma, which caused physical and emotional pain and suffering.

75. As a direct result of the foregoing, Plaintiff sustained physical, emotional, and psychological injuries, along with pain and suffering and loss of enjoyment of life.

76. That the amount of damages sought herein exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

77. That this action falls within one or more of the exceptions set forth in CPLR §1601, as with due diligence, Plaintiff is unable to obtain jurisdiction over any such person that may have any fault in this matter aside from Defendants herein, and in that Defendants were vicariously responsible for any possible additional parties with liability herein.

78. That this action falls within one or more of the exceptions set forth in CPLR §1602, specifically: (5) (due to Defendants' intentional conduct), (7) (as Defendants acted with reckless disregard), (11) (as Defendants acted knowingly or intentionally, and in concert).

AS AND FOR A THIRD CAUSE OF ACTION
(Malicious Prosecution)

79. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "78" with the same force and effect as if fully set forth herein.

80. As a result of the foregoing, VEGA had a criminal proceeding against him that terminated in his favor, which lacked probable cause for commencing and was brought with actual malice.

81. As a direct result of the foregoing, Plaintiff sustained physical, emotional, and psychological injuries, along with pain and suffering and loss of enjoyment of life.

82. That the amount of damages sought herein exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

83. That this action falls within one or more of the exceptions set forth in CPLR §1601, as with due diligence, Plaintiff is unable to obtain jurisdiction over any such person that may have any fault in this matter aside from Defendants herein, and in that Defendants were vicariously responsible for any possible additional parties with liability herein.

84. That this action falls within one or more of the exceptions set forth in CPLR §1602, specifically: (5) (due to Defendants' intentional conduct), (7) (as Defendants acted with reckless disregard), (11) (as Defendants acted knowingly or intentionally, and in concert).

AS AND FOR A FORTH CAUSE OF ACTION
(Unlawful Arrest and False Imprisonment)

85. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "84" with the same force and effect as if fully set forth herein.

86. On the night of February 18, 2023 and into the morning of February 19, 2023, VEGA was arrested and detained without a warrant and illegally and such arrest was authorized by Defendants, and Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI.

87. Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, intended to confine VEGA, which VEGA was conscious of, and in which VEGA did not consent to, and the confinement Defendants put VEGA in was not privileged.

88. Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, confinement of VEGA, which VEGA was conscious of, and in which VEGA did not consent to, and the confinement Defendants put VEGA in was not privileged.

89. Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, confinement of VEGA was made while Defendants, Police Officers

HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, were acting under color of state law as police officers of the New York City Police Department under the employ of Defendant CITY.

90. As a direct result of the foregoing, Plaintiff sustained physical, emotional, and psychological injuries, along with pain and suffering and loss of enjoyment of life.

91. That the amount of damages sought herein exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

92. That this action falls within one or more of the exceptions set forth in CPLR §1601, as with due diligence, Plaintiff is unable to obtain jurisdiction over any such person that may have any fault in this matter aside from Defendants herein, and in that Defendants were vicariously responsible for any possible additional parties with liability herein.

93. That this action falls within one or more of the exceptions set forth in CPLR §1602, specifically: (5) (due to Defendants' intentional conduct), (7) (as Defendants acted with reckless disregard), (11) (as Defendants acted knowingly or intentionally, and in concert).

AS AND FOR A FIFTH CAUSE OF ACTION
(Negligent Screening, Hiring, and Retention under the laws of the State of New York)

94. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraph numbered "1" through "93" with the same force and effect as if fully set forth herein.

95. Upon information and belief, Defendant CITY failed to use reasonable care in the screening, hiring and retention of the aforesaid individual Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, who conducted and participated in the violation of VEGA's rights.

96. As a direct result of the foregoing, Plaintiff sustained physical, emotional, and psychological injuries, along with pain and suffering and loss of enjoyment of life.

97. That the amount of damages sought herein exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

98. That this action falls within one or more of the exceptions set forth in CPLR §1601, as with due diligence, Plaintiff is unable to obtain jurisdiction over any such person that may have any fault in this matter aside from Defendants herein, and in that Defendants were vicariously responsible for any possible additional parties with liability herein.

99. That this action falls within one or more of the exceptions set forth in CPLR §1602, specifically: (5) (due to Defendants' intentional conduct), (7) (as Defendants acted with reckless disregard), (11) (as Defendants acted knowingly or intentionally, and in concert).

AS AND FOR A SIXTH CAUSE OF ACTION
(Violation of rights under the New York Constitution Article I § 5)

100. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "99" with the same force and effect as if fully set forth herein.

101. VEGA has a state protected right to be free from cruel and unusual punishment, yet when Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, forcefully slammed VEGA to the ground in an attempt to arrest him, ignored VEGA's request to be stood up and denied VEGA's immediate medical care after sustaining injuries caused by the Defendants, the Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, violated VEGA's right to be free from cruel and unusual punishment.

102. When Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, violated VEGA's right to be free from cruel and unusual punishment, Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, were acting

under color of state law as police officers of the New York City Police Department under the employ of Defendant CITY.

103. Furthermore, by Defendants, CITY and Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, violating VEGA's right to be free from cruel and unusual punishment, plaintiff sustained a torn rotator cuff, a glenoid fracture of shoulder, a hematoma, in addition to other trauma, which caused a catastrophic amount of pain and suffering.

104. As a direct result of the foregoing, Plaintiff sustained physical, emotional, and psychological injuries, along with pain and suffering and loss of enjoyment of life.

105. That the amount of damages sought herein exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

106. That this action falls within one or more of the exceptions set forth in CPLR §1601, as with due diligence, Plaintiff is unable to obtain jurisdiction over any such person that may have any fault in this matter aside from Defendants herein, and in that Defendants were vicariously responsible for any possible additional parties with liability herein.

107. That this action falls within one or more of the exceptions set forth in CPLR §1602, specifically: (5) (due to Defendants' intentional conduct), (7) (as Defendants acted with reckless disregard), (11) (as Defendants acted knowingly or intentionally, and in concert).

AS AND FOR A SEVENTH CAUSE OF ACTION
Negligence

108. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "107" with the same force and effect as if fully set forth herein.

109. That on February 18, 2023, while VEGA was in the custody of the Defendants, CITY and Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI breached their duty of care to VEGA.

110. When Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, forcefully slammed VEGA to the ground in an attempt to arrest him, ignored VEGA's request to be stood up and denied VEGA's immediate medical care after sustaining injuries caused by the Defendants, the Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, breached their duty of care to VEGA.

111. Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, breached their duty of care to VEGA in acting outside the manner a reasonable police officer would by causing severe injury to VEGA without warning or provocation, which are the actual and proximate cause of VEGA's injuries.

112. Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, acted outside the manner a reasonable police officer would by causing severe injury to VEGA without warning or provocation, which are the actual and proximate cause of VEGA's injuries.

113. When Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, violated their duty of care to VEGA, Defendants, Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI, were acting under color of state law as police officers of the New York City Police Department under the employ of Defendant CITY.

114. As a result of the foregoing occurrence, VEGA sustained a torn rotator cuff, a glenoid fracture of shoulder, a hematoma, in addition to other trauma, which caused a catastrophic amount of pain and suffering.

115. As a direct result of the foregoing, Plaintiff sustained physical, emotional, and psychological injuries, along with pain and suffering and loss of enjoyment of life.

116. That the amount of damages sought herein exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

117. That this action falls within one or more of the exceptions set forth in CPLR §1601, as with due diligence, Plaintiff is unable to obtain jurisdiction over any such person that may have any fault in this matter aside from Defendants herein, and in that Defendants were vicariously responsible for any possible additional parties with liability herein.

118. That this action falls within one or more of the exceptions set forth in CPLR §1602, specifically: (5) (due to Defendants' intentional conduct), (7) (as Defendants acted with reckless disregard), (11) (as Defendants acted knowingly or intentionally, and in concert).

AS AND FOR AN EIGHTH CAUSE OF ACTION
(Respondent Superior liability under the laws of the State of New York)

119. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1 " through "118" with the same force and effect as if fully set forth herein.

120. Defendant CITY is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

121. Specifically, Defendant CITY is liable for all of the conduct mentioned in this complaint that Defendant Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI committed due to the fact such conduct was committed while that Defendant Police Officers HIRALDO, KACAJ, RAFID, and ABDELHAKIMALI were acting in the scope of their employment under Defendant CITY.

122. As a direct result of the foregoing, Plaintiff sustained physical, emotional, and psychological injuries, along with pain and suffering and loss of enjoyment of life.

123. That the amount of damages sought herein exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

124. That this action falls within one or more of the exceptions set forth in CPLR §1601, as with due diligence, Plaintiff is unable to obtain jurisdiction over any such person that may have any fault in this matter aside from Defendants herein, and in that Defendants were vicariously responsible for any possible additional parties with liability herein.

125. That this action falls within one or more of the exceptions set forth in CPLR §1602, specifically: (5) (due to Defendants' intentional conduct), (7) (as Defendants acted with reckless disregard), (11) (as Defendants acted knowingly or intentionally, and in concert).

WHEREFORE, plaintiff demands judgment against Defendants, and each of them, in such sums as a jury may find fair, reasonable and just, together with costs, interests and disbursements of this action.

Pursuant to 22 NYCRR § 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in this Summons and Complaint are not frivolous;

Dated: New York, NY
February 18, 2024

RHEINGOLD GIUFFRA RUFFO
& PLOTKIN LLP
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